

The Petroleum and Natural Gas Regulatory Board (Salary, Allowances and other Conditions of Service of Secretary) Rules, 2006

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UNION OF INDIA

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The Petroleum and Natural Gas Regulatory Board (Salary, Allowances and other Conditions of Service of Secretary) Rules, 2006

Rule

THE-PETROLEUM-AND-NATURAL-GAS-REGULATORY-BOARD-SALARY-ALLOWANCES-AND-OTHER-CONDITIONS-OF-SERVICE-OF-SECRETARY-RULES-2006 of 2006

Published on 15 September 2006

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The Petroleum and Natural Gas Regulatory Board (Salary, Allowances and other Conditions of Service of Secretary) Rules, 2006

Published vide Notification No. G.S.R. 571(E), 15th September, 2006

G.S.R. 571(E). - In exercise of the powers conferred by Sub-section (3) of Section 10 read with clause (c) of Sub-section (2) of Section 60 of the Petroleum and Natural Gas Regulatory Board Act, 2006 (

19 of 2006

), the Central Government hereby makes the following rules, namely :-

1.

Short title and commencement.

(1)

These rules may be called the Petroleum and Natural Gas Regulatory Board (Salary, Allowances and other Conditions of Service of Secretary) Rules, 2006.

(2)

They shall come into force on the date of their publication in the Official Gazette.

2.

Definitions.

- In these rules, unless the context otherwise requires, -

(a)

"Act" means the Petroleum and Natural Gas Regulatory Board Act, 2006;

(b)

"Board" means the Petroleum and Natural Gas Regulatory Board established under sub-section (1) of section 3 of the Act;

(c)

"Schedule" means the Schedule annexed to these rules;

(d)

"Secretary" means the Secretary of the Board;

(e)

All other words and expressions used and not defined in these rules but defined in the Act shall have the meanings respectively as assigned to them in the Act.

3.

Pay scale or secretary.

- The secretary shall be entitled to a monthly salary in the pay scale of Rs. 18,400-500-22,400.

4.

Conditions of service.

(1)

The conditions of service of the secretary in the matter of pay, allowances, leave, joining time, joining time pay, age of superannuation and other conditions of service, shall be regulated in accordance with such rules and regulations as are, from time to time, applicable to officers and employees of the Central Government belonging to Group 'A' and drawing the corresponding scale of pay:

Provided that -

(a)

the secretary who is a Government employee on deputation to the Board and has been allotted residential accommodation under General Pool shall be eligible to retain the facility of Government residential accommodation in terms of Ministry of Urban Development and Poverty Alleviation, Directorate of Estates, OM No. 11013/D/7/94-Pol. IV/I, dated 26.4.1999, and as amended from time to time; and in case Government residential accommodation has not been allotted or availed, he shall be eligible for House Rent Allowance at par with Central Government servant drawing equivalent pay. The secretary who is not appointed on deputation from the Government shall be entitled to House Rent Allowance at par with those applicable to Central Government servant drawing equivalent pay.

(b)

the secretary shall be entitled to medical facilities as specified in Schedule-I.

(c)

(i)

in case the secretary is not on deputation from the Government, he shall be entitled to subscribe to Contributory Provident Fund and shall be regulated by the Contributory Provident Fund Rules made by the Central Government for the Board:

Provided that such secretary shall not be entitled to get pension;

(ii)

in case the secretary is appointed on deputation, he shall continue to be governed by Provident Fund Scheme as is applicable to him in his parent Ministry / Department / organisation and the Board shall recover contribution towards provident fund from the officer and remit the amount immediately to the lending Ministry / Department / organisation. Any loss of interest on account of late remittance shall be borne by the Board.

(d)

the secretary while on official foreign tours, shall be entitled to allowances as specified in Schedule-II.

(e)

in case the secretary is not on deputation, he shall be eligible for payment of gratuity as per the Gratuity Act, 1976.

(f)

in case the secretary is not on deputation, he shall be entitled to Group Insurance benefit as per the scheme to be formulated by the Board in consultation with the Central Government.

(g)

the secretary on deputation from organization other than the Central Government shall be eligible for pension and retirement benefits, if any, as are available to him in his parent organisation:

Provided that in case the secretary is not on deputation, he shall not be eligible for pension.

I

[See rule 4(b)]

Medical Facilities

1. Outdoor Medical expenses. - (i) The Secretary shall be eligible to get medical reimbursement for self and declared members of family.

Explanation. - For the purpose of this clause, the expression "family" has the same meaning as assigned to it in the Central Services (Medical Attendance) Rules, 1944.

(ii)

The reimbursement of outdoor medical expenses shall be limited to the actual expenses or one month's pay on 1st January of the year (Basic pay + Dearness Allowance) whichever is less. The claim should be supported by Doctor's prescription and the original cash memos/bills for treatment by the Doctor and purchase of medicines. Release of increment or promotion during the year shall not affect the limit as on 1st January of the year. In case secretary joins the Board during the year, the annual entitlement shall be restricted on pro-rata basis.

(iii)

The outdoor treatment shall be taken from the Authorised Medical Attendants from the panel to be maintained by the Board.

2. Indoor treatment. - (i) For the purpose of indoor treatment the secretary shall be entitled for medical treatment at hospitals authorised by the Board in this behalf, and for this purpose cost of treatment including hospital accommodation, nursing home facility etc shall be as per the provisions of the Central Services (Medical Attendants) Rules, 1944 as applicable to the Central Government employees drawing equivalent pay.

(ii)

The authorised hospitals for the purpose of (i) above shall be the same as are available to the Central Government employees regulated by Central Services (Medical Attendance) Rule 1944.

(iii)

Treatment at authorised hospitals may be taken on the advice of the Authorised Medical attendants except in emergency.

II

[See rule 4(d)]

Travelling Allowance in respect of foreign tours

(1)

Deputation of secretary abroad. - Deputation of the secretary abroad shall be decided by the Chairperson.

(2)

Entitlement for travel by Air. - The secretary shall be entitled to travel abroad by Air at par with facilities available from time to time to Central Government employees drawing equivalent pay.

(3)

Per diem halting allowance. - While on foreign tour, the secretary shall be entitled to draw per diem allowances at the rate of US \$ 350 per day. But, for travel to Nepal, the rate shall be US \$ 250 per day (to be paid in Indian currency).

Provided that -

(a)

the proposed per diem would be a consolidated amount limited to actual subject to production of vouchers covering room rent, taxi charges, entertainment if any, official telephone calls, daily allowance at the rate available from time to time to Central Government employees drawing equivalent pay and other contingent expenditure.

(b)

if full hospitality (i.e. lodging and boarding) is provided by the host organization or official agencies, Indian Missions, the incidental expenses would be US \$ 100 per-diem for the entire period of stay. In case of Nepal, the same would be US \$ 50 per diem. In such a case, economy cut if any, as applicable to the Central Government officers shall also apply at the rate of US \$ 100 or US \$ 50, as the case may be.

(c)

in case only free lodging is provided, cash allowance at the rate of 50% of the per-diem at normal rate would be applicable.

(d)

in case of stay beyond seven consecutive days, the per diem from the 8th to 28th days shall be US \$ 250 and the rate of per diem for stay beyond twenty eight days consecutively shall be decided on case to case basis keeping in view the facilities provided.

(e)

in case the lodging and transport arrangements are made through the concerned Indian Mission abroad, only daily allowance at the rate available from time to time to Central Government employees drawing equivalent pay and other contingent expenditure shall be admissible.

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